The Virginia & Kentucky Resolutions

James Madison & Thomas Jefferson · 1798

Source: Virginia Resolution (1798). Public domain. The compact-theory passage.

> Protesting the Alien and Sedition Acts, Madison and Jefferson argued that the states, as parties to the constitutional "compact," could judge and "interpose" against federal overreach — an early assertion of states' rights.

That this Assembly doth explicitly and peremptorily declare, that it views the powers of the federal government, as resulting from the compact, to which the states are parties . . . and that in case of a deliberate, palpable, and dangerous exercise of other powers, not granted by the said compact, the states who are parties thereto, have the right, and are in duty bound, to interpose for arresting the progress of the evil, and for maintaining within their respective limits, the authorities, rights and liberties appertaining to them.